Franciscus Dylan Rosario (IN PRO PER)
7624 Melody Drive
Rohnert Park, CA 94928
P: 650.488.7510
E: soltrinox@gmail.com

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

RESPONSE TO COURT LETTER RECEIVED FEBRUARY 23, 2026 AND REQUEST TO AUGMENT RECORD

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba Sonoma Liquor,
Does 1–50

Defendants and Respondents

February 23, 2026

Clerk of the Court
Court of Appeal, First Appellate District, Division Three
350 McAllister Street
San Francisco, CA 94102

Dear Clerk:

This submission responds to the Court's letter received February 23, 2026, regarding the bookmarks in the Appellant's Opening Brief and the Motion to Augment the Record. Appellant noticed during preparation that the documents had been reversed again; he has corrected the formatting and electronic bookmarks on the Opening Brief and ensured the

Motion to Augment the Record on Appeal (Documents Attached) is dated February 23, 2026. In prior versions, adding document bookmarks inadvertently reset the Table of Authorities (page numbers and links); Appellant has now corrected the Table of Authorities so that page numbers accurately reflect where each authority is cited and the links navigate correctly to those pages, in compliance with CRC 8.204 and 8.74. Appellant respectfully requests that the record on appeal be augmented pursuant to California Rules of Court, rule 8.155.

Appellant respectfully notes that he continues to experience long-term effects of injuries sustained in the underlying case, including cognitive difficulties from the incident, and is proceeding in pro per to the best of his ability. He asks for the Court's patience and understanding with any procedural or formatting issues that may arise.

Opening Brief corrections made (for Clerk reference):

- Corrected reversed document order (Opening Brief and Motion to Augment)
- Corrected electronic bookmarks to match document structure (Local Rule 12)
- Corrected Table of Authorities page numbers and link annotations (point to actual citation pages)
- Removed 8 uncited authorities from TOA; added 2 cited-but-missing authorities (College Hospital, Robinson v. Cable)
- Replaced two-column table on page 35 (jury question / refused statute) with numbered list
- Fixed run-on list formatting in Argument I.E
- Ensured Motion to Augment dated February 23, 2026

1 Documents Enclosed (or Attached) for Filing

This payload contains exactly the following five files:

1. Appellant's Opening Brief (01-Appellants-Opening-Brief.pdf).
2. Cover Letter (02-Cover-Letter.pdf).
3. This response letter (04-Response-to-Court-Letter-and-Request-to-Augment.pdf).
4. Motion to Augment the Record on Appeal (Documents Attached) (06-Motion-to-Augment-Record.pdf), including Exhibits A (Jury Instructions, doc. 09573595) and B (Jury Notes, doc. 09577565). The jury notes and jury instructions are attached to the Motion as Exhibits A and B.
5. Proof of Electronic Service (03-Proof-of-Electronic-Service.pdf).

Certified Clerk's Transcript and Reporter's Transcripts are not included in this payload; the Court has or will receive those through the normal transcript designation process.

2 Lodging of Jury Notes and Jury Instructions (Not in Clerk's Transcript)

In its order of February 17, 2026, denying Appellant's third motion to augment, the Court stated: "To the extent appellant seeks to augment the record with specific material that was filed in the trial court and is not already part of the appellate record, appellant fails to explain why he cannot attach copies of the material to his motion." Appellant understood this as an invitation to attach copies.

Appellant has attached copies of both documents to the Motion to Augment the Record on Appeal (Documents Attached) (06-Motion-to-Augment-Record.pdf) as Exhibits A and B, filed herewith. The jury notes and jury instructions are identified by Superior Court document number, title, and filing date as required by California Rules of Court, rules 8.155(a)(2)–(3) and 8.122(a).

These two documents (jury notes and jury instructions) were not in the Clerk's Transcript transmitted to the Court of Appeal. Appellant obtained copies from the Superior Court of California, County of San Francisco, website. Appellant needs both for proper consideration of the issues raised in the Opening Brief, including whether the trial court violated Code of Civil Procedure section 614 when responding to the jury's request for governing law during deliberations. Both documents are attached to the Motion to Augment and are provided in compliance with the Court's February 17, 2026 order.

3 Request to Augment the Record (Rule 8.155)

Appellant respectfully requests that the record on appeal be augmented to include the following items that were filed or lodged in the superior court and that are necessary for proper consideration of the issues raised in the Opening Brief:

1. Jury questions and court's written responses from deliberations (Exhibit B; "JURY NOTES RECEIVED DURING DELIBERATIONS"; Superior Court doc. 09577565; filed April 23, 2025; cited in the brief as "JURY-QUESTIONS"). Attached to Motion to Augment as Exhibit B.

2. Court's jury instructions given at trial (Exhibit A; "JURY INSTRUCTIONS"; Superior Court doc. 09573595; filed April 22, 2025; cited in the brief as "COURT-JURY-INSTRUCTIONS"). Attached to Motion to Augment as Exhibit A.

3. Plaintiff's proposed jury instructions submitted to the superior court (including CACI 707 and any related proposed instructions), as reflected in the Register of Actions entries for submissions received April 22, 2025 (CT 1, p. 35, ll. 14–23), and any corresponding clerk's transcript pages that contain the proposed instructions (e.g., CT 1, p. 1664 and surrounding pages).

4. Any reporter's transcript pages from the following proceedings that are not already part of the designated record: (a) jury deliberation discussions and court responses (RT 11); (b) closing arguments (RT 10); (c) defendant testimony (RT 8); (d) officer testimony

(RT 7); and (e) instruction conference or discussions regarding jury instructions, if transcribed.

5. Any clerk's transcript pages that contain the complaint pleading Vehicle Code sections 22107 and 21804(a) (CT 1, pp. 40–44), the judgment and notice of entry (CT 6, pp. 1689, 1691), the notice of appeal (CT 7, p. 1844), and the register of actions (CT 1, p. 35), if any of these are not already included in the record transmitted.

These materials are relevant to the issues presented in the Opening Brief, including whether the court violated Code of Civil Procedure section 614 when responding to the jury's request for governing law during deliberations. Appellant will provide copies of any of the above documents that are in Appellant's possession if the Court so directs.

4 Compliance Reference

The following cross-references Appellant's submission to the California Rules of Court and First District rules. The Motion to Augment (06-Motion-to-Augment-Record.pdf) is the primary document addressing the Court's February 17, 2026 instructions.

Motion to Augment (06-Motion-to-Augment-Record.pdf)

- **CRC 8.155(a)(2):** Attach copies; consecutive page numbering. Copies of Exhibit A (Jury Instructions, doc. 09573595) and Exhibit B (Jury Notes, doc. 09577565) attached; attachment pages consecutively numbered from 1.
- **CRC 8.155(a)(3):** Identify if not attached. All requested items attached; none identified without copy.
- **CRC 8.54(a):** Motion states grounds and relief; memorandum; declaration. Notice, Memorandum of Points and Authorities, and Declaration included.
- **CRC 8.74(a)(1):** Text-searchable PDF. Document prepared for electronic filing; text-searchable.
- **CRC 8.74(a)(2):** Consecutive pagination. Pages numbered consecutively; electronic page counter matches.
- **CRC 8.74(a)(3):** Bookmarks to headings, exhibits; Inherit Zoom. Bookmarks to each section and exhibit first page. Inherit Zoom must be set in Adobe Acrobat per court guidance.
- **CRC 8.74(a)(5):** File size $\leq$ 25 MB. Single PDF under 25 MB.
- **CRC 8.74(a)(7):** Page size 8.5 x 11. Letter size.
- **CRC 8.74(a)(9):** Cover info (name, address, phone, email). On first page.
- **1st DCA Local Rule 12:** Bookmarks to each topic heading; PDF $\leq$ 25 MB. Compliant.

Opening Brief (01-Appellants-Opening-Brief.pdf)

- **CRC 8.204(b):** Brief format. 45 pages; 11,173 words; Certificate p. 45.
- **CRC 8.208(d)(1):** Certificate of Interested Entities. Included at p. 2.
- **CRC 8.40(b):** Brief title, case numbers. On cover (p. 1).
- **1st DCA Local Rule 12:** TOC with page numbers; TOA alphabetical; bookmarks; text-searchable. Compliant.

The Opening Brief word count has been validated at 11,173 words (excluding cover, table of contents, table of authorities, and certificate of compliance) and is compliant with the 14,000-word limit of California Rules of Court, rule 8.204(c)(1).

The documents are submitted in compliance with the California Rules of Court and the First District Local Rules. If you need any further information, please contact me at the address or email above.

Respectfully submitted,

Franciscus Dylan Rosario
Appellant, in pro per